

perjury setting forth the basis for the recovery of the cost item(s). See June 22nd Order, p. 2.

No such declaration was filed by Defendants as ordered.

The Cost Items at Issue do not appear to be proper charges and Defendant have failed to oppose the motion or provide the supplemental supporting information as directed by the Court. The Court does not find that Cost Items at Issue were reasonably necessary to the conduct of the litigation and properly recoverable costs.

Disposition

The Court finds and orders as follows:

1. The Motion to Tax Costs is **GRANTED**.
2. The Cost Items at Issue are hereby STRICKEN and the claimed costs taxed in the amount of \$2,492.36. Accordingly, Defendants' recoverable costs are reduced to **\$907.83**.
3. The Court shall issue the order after hearing.

13. 9:00 AM CASE NUMBER: N26-0624

CASE NAME: IN RE J.L., A MINOR

MINOR'S COMPROMISE

FILED BY: CELESTE LEARY and MICHAEL LEARY

TENTATIVE RULING:

Petitioners Celeste Leary and Michael Leary ("Petitioners") as the parents of the claimant Jonelle Leary filed a Petition for Approval of Compromise of Claim on or about April 8, 2026 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on July 1, 2025.

Analysis

An enforceable settlement of a minor's claim or that of a person lacking the capacity to make decisions can only be consummated with court approval. Prob. Code. §§ 2504, 3500, 3600 *et seq.*; Code Civ. Proc. § 372; see *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337. When a minor is a party that person must appear by a guardian or court appointed guardian as litem. Code Civ. Proc. § 372.

A petition for court approval of a compromise of a minor's disputed claim must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise, covenant, settlement, or disposition. Rule 7.950 of the California Rules of Court ("CRC").

The Minor's Compromise is unopposed.^{[\[1\]](#)}

The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.

2. The Court shall enter the proposed form(s) of order lodged with the moving papers.

^[1] Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2026) (“CJER Civ. Pro.—Before Trial”), § 5.43 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor’s compromise and concluding that a judge “may decide a petition to approve or disapprove a minor’s compromise on an ex parte basis, in chambers”). In any event, no party has sought to appear to oppose the Minor’s Compromise.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-00400
CASE NAME: SHERRI BROWN VS. CITY OF PITTSBURG
COMPEL FURTHER RESPONSES TO INTEROGS, SET 1
FILED BY: BROWN, SHERRI
TENTATIVE RULING:

Parties to Appear.

15. 9:01 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
COMPEL RESPONSES TO FORM INTEROGS, SET 1
FILED BY: GUPTA, PRAVEEN
TENTATIVE RULING:

On January 15, 2026, plaintiff Praveen Gupta (“Plaintiff”) filed a motion to compel (the “Motion to Compel”) responses to discovery served upon defendants The Vintner Condominium Homeowners’ Association (the “HOA”) and New Pipes Inc. (“New Pipes”) (collectively, “Defendants”). The motion also seeks an order deeming the truth of the matters specified in requests for admissions served. The Motion to Compel was initially set for hearing on April 17, 2026. The motion was continued by the Court to August 31, 2026.

Background

Plaintiff served Defendants with certain discovery requests on October 22, 2025, including form interrogatories, special interrogatories, requests for admissions, and requests for production of documents. See Declaration of Praveen Gupta filed January 15, 2026 as part of the Motion to Compel (“Gupta Decl.”) ¶2. Plaintiff contends responses were due by December 5, 2025, after an extension was given for responses. *Id.*

Plaintiff contends Defendants served objection only responses. *Id.* at ¶15 and **Exhibit C**.

Responses were served December 5, 2026 by the HOA. *Id.* at **Exhibit C**.